7/8/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: July 8, 2025 at 1:00 p.m.

LOCATION: Cortlandt Town Hall
1 Heady Street
Cortlandt, New York 10567

BEFORE: ALJ JAMES COSTELLO
ALJ NICHOLAS PLANTY

Reported by John Sheffield

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(The hearing commenced at 1:02 p.m.)

A.L.J. COSTELLO: I call case 25-E-0072. Proceeding on a motion of the Commission as to the rates, charges, rules, and regulations of Consolidated Edison Company of New York, Inc. for electric service; and case 25-G-0073, proceeding on a motion of the Commission as to the rates, charges, rules, and regulations of Consolidated Edison Company of New York, Inc. for gas service.

Good afternoon, everyone. We're going to have at least a portion of this interpreted for people in case they want to use Spanish interpreter, she's there. So we want to inform you that we have a Spanish interpreter available to provide real-time interpretation of people who want to listen or provide a comment today in Spanish.

We have headphones that are available at the table by the side there near the entrance for anybody that wants to use the interpretation services. If you want to provide a comment, you'll have to fill out a registration card available at the table on my immediate right. And when giving a statement, you'll have to pause after two or three

sentences so that we give the opportunity for the person to interpret and also for the court reporter to capture your statement for the record.

I'm going to stop for a moment to see if anybody wants to get a headset, would like to speak in Spanish. And we'll go off the record for a moment, and then we'll come back on in a minute. So I'm going off record.

(Off the record)

(On the record)

A.L.J. COSTELLO: My name is James Costello. And with me to my immediate right is Nicholas Planty. We are two of three administrative law judges for the Department of Public Service who have been assigned to these cases, and we are presiding over these public statement hearings today.

The public statement hearing is being held on behalf of the New York State Public Service Commission regarding the proposed changes in the electric and gas delivery rates and practices of Consolidated Edison Company of New York. Just for clarity, we want to let you know that we are employees of the Department of Public Service. We

are not here on behalf of Con Edison.

Okay. Before we get to your statements, I just want to provide a little background on these proceedings. Con Edison filed amendments to its electric and gas tariff schedules on January 31st, 2025, proposing increases in electric and gas delivery revenues for the 12-month period ending December 31st, 2026.

As of its April 10th, 2025 updated testimony, Con Ed proposed to increase its electric delivery revenues by approximately $1.6 billion, which is a 11.3 percent increase in total revenues, or a 17.9 percent increase in base delivery revenues, and a proposed increase to its natural gas delivery revenues by approximately $349 million, which is a 10.5 percent increase in total revenues and a 14.9 percent increase in base delivery revenues.

The actual bill impacts of those proposed changes on any particular customer class would vary based upon revenue allocation and rate design.

On or about May 30th, 2025, direct testimony and exhibits that responded to Con Edison's

requests were filed by various parties. They are Department of Public Service staff, City of New York, Assembly Member Chris Burdick, Assembly Member MaryJane Shimsky, Assembly Member Dana Levenberg, AMTRAK, Alliance for a Green Economy, Consumer Power Advocates, Environmental Defense Fund, or EDF, Electrify America LLC, Metropolitan Transportation Authority, Natural Resources Defense Council, New York Energy Consumers Council, New York Power Authority, Public Utility Law Project of New York, State Senator Robert Jackson, County of Westchester, and the Westchester Municipal Consortium, and finally by the Department of State's Utility Intervention Unit.

There was rebuttal testimony filed by various parties on June 24th, 2025. By a letter dated June 24th, 2025, Con Edison also filed a notice of pending settlement negotiations. So if those settlement negotiations are successful, parties to the settlement will provide a joint proposal to the Commission. There would then be further briefing, public comment, and an evidentiary hearing before the case is submitted to the Commission for its

determination.

The Commission can adopt a joint proposal, modify the joint proposal, or reject the joint proposal. If settlement negotiations are not successful, the administrative law judges would issue a new procedural schedule for an evidentiary hearing and post-hearing briefs. The case is then presented to the Commission for a decision, or the administrative law judges will issue a recommended decision.

If we do issue a recommended decision, the parties have an opportunity to brief their positions on those recommendations, and then the cases will be given to the Commission for decision. Under New York State law, the Public Service Commission will consider the utility's proposals and may adopt or reject them in whole, in part, or it may modify them.

At this time, the Commission must decide these cases by December 30th, 2025. However, that date may be subject to further extension. Regardless of how these cases proceed, the Public Service Commission will be the final decisionmaker

regarding the terms and conditions for providing electric and gas service.

This hearing is being held so you can provide your comments on Con Edison's proposals for the Commission's consideration. In making its decision, the Commission will consider the evidentiary record in these cases and the comments made at this and other public statement hearings.

The Public Service Commission has seven members: the chairperson, Rory Christian, and six commissioners, James Alesi, David Valesky, John Maggoire, Uchenna Bright, Denise Sheehan, and Radina Valova. And this afternoon, we are fortunate to have Commissioner Denise Sheehan with us.

And Commissioner, would you like to address the proceedings?

COMMISSIONER SHEEHAN: Sure. Thanks, Judge.

Good afternoon, everyone. As you heard, my name is Denise Sheehan. I am a commissioner with the New York State Public Service Commission, one of seven commissioners that serve on the Commission. I was -- I joined the Commission

last April, April 2024. So this is my first Con Ed rate case. I look forward to hearing from all of you.

I just want to make sure everyone has an understanding that the Commission will have the final decision on this after obviously staff and the parties, you know, finish the process. The Public Service Law -- the Commission is charged with implementing, the New York State Public Service Law. Among its many responsibilities, the Public Service Law requires that we act to ensure the reliability of the state's gas and electric systems and do that at just and reasonable rates, which I'm sure you can imagine is a complex responsibility, one that I take very seriously. And so do my fellow commissioners.

Your participation in this process is a vital part of the rate-making process. Your comments will become part of the official record. I want to personally thank you for being here today, taking the time out of your busy lives to share your thoughts, perspectives, and concerns regarding this rate case. I am interested in hearing your views and your stories.

There are more opportunities to comment, and the judges will share the details of the additional hearings as well as ways to submit written comments if you don't want to speak publicly today.

Again, I want to thank you for being here today. I want to thank the judges and the staff for -- for their time, too, and their commitment to this process. Thanks very much.

A.L.J. COSTELLO: Thank you, Commissioner.

So as I said earlier, the purpose of today's hearing is to provide you with an opportunity to share your opinions on the Con Ed rate filings with the Commission. The topic of today's event is limited to these cases -- particular cases. It's not the proper forum to raise issues unrelated to the company's rate requests.

If you do have specific issues with bills, the company has a table outside that they set up with information, a phone number that you could call that would be manned or would be -- people will be answering calls until the end of this public statement hearing process.

So again, if you have any questions with your bills, if you go outside, they have information on their table. Statements that you make today, as the Commissioner stated, will be made part of the official record in this case.

The court reporter, who's seated to my left, will prepare a transcript of the hearing to be included in the record of these proceedings so that your comments can be considered by all members of the Commission. When it is ready, the transcript will be available for public view on the Department of Public Service's website.

Today's hearing is not a question-and-answer session. We're only here to hear your comments. If you do not wish to speak at today's hearing but you'd like your views included in the record, as the Commissioner stated, there are various ways to comment.

Briefly, you can submit comments on the Department's website, which is going to be www.dps.ny.gov, by regular mail, or by telephone. The information regarding these alternative methods is available through the Department's Office of

Consumer Service staff, who are seated to my right.

Regardless of how your comments are submitted, they will be given equal consideration by the Commission. According to the Secretary's notice of this event, comments must be received by November 21st, 2025, to ensure that the Commission may consider them prior to the final determination.

If you'd like to make a statement today and you have not done so already, please fill out a registration form. The cards are available at the table with the Department of Public Service Office of Administrative Service's staff.

When you come up, please speak slowly and clearly so that the court reporter can accurately capture your statement for the record, and also state and spell your name. If you have a lengthy written statement, we ask that you provide a summary or overview and then submit the full written statement to be provided to us. It can be submitted by email or regular mail.

We ask that you please be respectful when delivering your comments. This is an official government proceeding, and the appropriate level of

decorum is expected of everyone. Shouting, swearing, interrupting speakers, and other disruptions are not only discourteous, but also they impede our ability to make sure we give everyone the same time to make their comments.

Finally, we ask that if you haven't done so already, please silence your cell phones. So with that, I'm going to go to our first speaker, who is Senator Peter Harckham.

SEN. HARCKHAM: Good afternoon, everyone. Thank you so much, Judge and Judge and Commissioner. I want to thank everyone from the Department of Public Service for being here. We want to thank the town of Cortlandt for hosting us, county police for being here, and certainly our constituents for being here. When you said "no cursing" you took half my vocabulary.

No, but seriously, I'm not one for performative politics, but I do want to share a few things. Number one, I would not take the absence of a large turnout here today as acceptance of the double-digit rate hike. Folks are working. You know, they're working. That's -- that's point number

one.

Point number two, over the last year in my office, we have received hundreds and hundreds of phone calls and emails, conversations that I've had with folks at our Coffees and Conversation that we have monthly. Folks are really hurting. And I hope as you go through this process, you really listen to the financial pain that folks are going through.

We literally have folks, and I'm not exaggerating, choosing between putting food on the table and paying their electric bills. In New York State right now, we have 1.2 million households in arrears on utility bills, 1.2 million. To me, that's a crisis. And so for a utility to come in and ask for a double-digit rate hike is tone deaf. It's irresponsible.

And if we have a marketplace of 1.2 million New Yorkers unable to pay their utility bills, how are they going to shoulder a double-digit increase?

The second point I want to make is, and you know this better than I, utilities are the

only segment of our economy where someone's allowed to have a monopoly, and then they're guaranteed a built-in profit. And that profit comes on the back of the ratepayers. And this is a utility that's averaged over the last two years, higher and lower, you know, each year, but on average $2 billion a year in profits.

And so in this rate case, they're asking for a ten percent return on equity. Who of us wouldn't want a ten percent return on equity? That's sweet. Last time in a case, they got 8.3 percent. That is a really sweet return. But in times when people are hurting, you know, the shareholders have to bear some of the burden as well. We cannot put this constantly on the backs of the ratepayers.

So I think ten percent is just obscenely excessive in these times. And a company with two billion in profits, the shareholders can give something here.

The other thing I want to make just very briefly, this notion that we hear from many utilities but is made in this case is that somehow the state's climate goals of CLCPA are responsible

for all of these increases.

We know our infrastructure has been underinvested in for decades. If we needed to build another EV charging station, we would need more transmission capacity and we would need more supply. Why is that? Because data centers, because of these flash mining warehouses that are gulping up power.

If we want to go down the road on green initiatives, the simple fact is a kilowatt of clean energy is far cheaper than a kilowatt of fossil fuel or nuclear energy. The State of Texas, which doesn't even believe in climate change and has no climate goals, all of their generation in the last three years has been in renewables because your utilities know that it's less expensive to build, more cost effective, and cheaper to buy.

So as we finish today and as I close out, once again, I just hope you really listen to the financial hardship that our ratepayers, my constituents, your -- the Con Ed ratepayers are paying now. A company with $2.2 billion in profits can certainly give some of that back to the ratepayers, and I believe what they're asking for is

excessive.

We need to invest obviously in our infrastructure, but all of that cannot be on the backs of the ratepayers. And when we have 1.2 million New Yorkers who can't pay their rates now, they certainly can't pay double-digit increases.

So thank you for being here. Thank you for listening. But more importantly, thank you for listening to my constituents and the ratepayers. So thank you so much.

A.L.J. COSTELLO: Thank you. Our next speaker is Assemblyperson Dana Levenberg.

MS. LEVENBERG: Good afternoon, Commissioner and Judges. My name is Dana Levenberg, and I'm the Assemblymember representing the 95th Assembly District, which includes Ossining, parts of Briarcliff Manor, Croton, Cortlandt, parts of Yorktown, Peekskill, and Westchester County.

Thank you for holding today's public statement hearing here at Cortlandt Town Hall, which is in the center of my district. It provides a convenient location for many individuals in northern Westchester.

A.L.J. COSTELLO: Oh, sorry to interrupt. Could you please spell your name for the record?

MS. LEVENBERG: I'm so sorry. D-A-N-A L-E-V-E-N-B-E-R-G.

A.L.J. COSTELLO: Thank you.

MS. LEVENBERG: Apologies.

As mentioned, I am an intervenor in this kind of rate case for gas and electric service, and I do so to represent the interests of my constituents. I implore you to listen to the members of the public today. They are truly struggling to afford the daily cost of living, including utility bills, and generally have a low satisfaction with their utility, Con Edison. So it is super important that their voices be heard in this process.

As you mentioned, I recently submitted testimony in this proceeding, which is available to the public on the Department of Public Service website. I would like to highlight some of the items that I discussed in more detail in my testimony.

I aimed to elevate the levels of satisfaction and dissatisfaction with Con Edison's

rates, charges, customer service programs, and storm response expressed to my office by my constituents in Con Edison service coverage territory or brought to my attention in the course of my service as an Assemblymember.

There are extensive affordability challenges among residential customers in AD-95 that must be raised as part of this process, and as my colleague mentioned just before. Additionally, I believe it is imperative to include policy recommendations that would ensure Con Edison does their part to meet the state's climate goals, which are set forth in the Climate Leadership and Community Protection Act and associated scoping and planning.

In a recent survey of constituents in the 92nd, 93rd, and 95th Assembly districts, respondents overwhelmingly indicated their very low satisfaction with gas and electric delivery charges. My constituents are concerned about rising costs and frustrated that they are unable to control or budget utility expenses in their homes because of rising delivery costs.

The CLCPA was enacted in 2019, as you

know, and is one of the most ambitious climate laws in the nation and included goals of achieving a reduction in economy-wide greenhouse gas emissions by 40 percent by 2030 and 85 percent by 2050 from 1990 levels. I do not believe Con Edison is meeting the demand for electrification necessary to achieve these goals.

According to Con Edison's response to my interrogatories, they received approximately 19,520 requests for electric and gas service upgrades between 2020 and 2024. Of those requests, roughly 13 percent were filled. This is woefully inadequate as many homes require electric service upgrades to accommodate electrification of home heating, cooling, and appliances, which are key to meeting the scoping plan's goals.

I anticipate the cost savings associated with recent legislation to end the 100-foot rule, and hopefully future legislative changes to end the obligations to serve will help to fund recommended changes to meet these goals.

I am also concerned about the cost of executive compensation. The highest paid employees

at Con Edison include the chief executive officer, chief financial officer, chief information officer, and presidents and vice presidents. These salaries range from approximately 400,000 to $1.4 million as of December 31st, 2024. Most of these individuals make more than double or quadruple the Governor of New York's salary, 250,000, and are well outside of the range of most households in Con Edison's service territory.

At a time when so many families and small businesses are struggling to make ends meet, Con Edison should consider reducing various executive salaries to be more in line with other public sector executives like the Governor of New York.

I have an additional testimony which I will submit. I just want to thank you so much for your time today. But mostly, I thank the people who have come out today to express their concerns. Again, I hope you listen very carefully to the concerns throughout the rate case proceedings. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker is David Margulis.

MR. MARGULIS: Good afternoon and thank you for letting me speak. My name is David Margulis, M-A-R-G-U-L-I-S.

A.L.J. COSTELLO: Thank you.

MR. MARGULIS: I'm a resident of the Town of Ossining. Just for transparency purposes, I'm also a volunteer member of the Town of Ossining Environmental Advisory Committee and the New York-New Jersey Trail Conference. But today, I am strictly here as a ratepayer. I'm not speaking for anybody else.

I live in a condo in the town of Ossining, and I basically have three issues. The first is, of course, the increase in any other household expense, a 19 percent annual increase would be considered outrageous by any agency or any person looking at that increase in cost and the fact that a utility that should be more focused on providing service than on raising money for its shareholders should be charging that.

I would just bring to you that on my last two bills, the delivery charges for electric were 179 percent and 194 percent of the cost of the

electricity. And on my gas bill, they were 382 percent and 448 percent of the cost of the basic product. To me, that is an outrageous disconnect in terms of what is being provided.

The other -- the other issue I have is about the -- the increase in the ROI, which is being raised per the -- your web -- PSC website. The request was (indiscernible) approximately 0.85 percent at a time when they are also increasing their investment significantly.

So essentially, we are at -- they are asking for an increased percentage of return on a higher base. This essentially allows the company to mathematically receive a windfall, or what I would consider a windfall, in a case where, again, I would submit that the utility is supposed to be providing services to a community at a -- at a minimal reasonable cost so that both the community benefits and the shareholders of the company make a reasonable return.

I would -- the last point I would like to make is that, last year, as Senator Harckham mentioned, it would appear that much of the increase

in infrastructure is required for commercial uses rather than residential uses. And the increases being requested by Con Ed do not discriminate in terms of general percentages between those two uses.

I would again submit that your residential ratepayers should not be supporting Amazon's building out of their Last Mile warehouses both in terms of affordability because of the number of residential households that are already suffering under that, and also in terms of basic fairness.

So again, thank you for listening to me. I ask the PSC to put the ratepayers first, while still allowing Con Ed to get a reasonable -- shareholders to get a reasonable rate of return, but not an excessive one. Thank you.

A.L.J. COSTELLO: Thank you.

Our next speaker is Jeremy Krantz.

MR. KRANTZ: Good afternoon. Thank you for the hearing today. My name is Jeremy Krantz, J-E-R-E-M-Y K-R-A-N-T-Z.

A.L.J. COSTELLO: Thank you.

MR. KRANTZ: I live at Fourth and Crestbrook (phonetic) in Cortlandt Manor. In 2010,

we were -- we made a decision to actually put 26 panels on our house. We've been having panels for 15 years. Most panels are owned by us; they're not leased. We purchased them out of our own pockets as an effort to try and help this environment, et cetera.

Con Ed did nothing. Nothing other than signing off on the approvals for the Town of Cortlandt for all the necessary installation. Con Ed wipes out my kilowatt hours every year whenever they feel like it. They pick a date in December or January each year. For the last five years, I have been billed zero kilowatt hours.

This is a very fact-sensitive set of facts for you folks. It's a comprehensive analysis of Con Ed billing regarding rates, supplies, and delivery charges. I put into the grid every single month. In June, they wiped out 2,259 kilowatt hours, my kilowatt hours, because they thought -- I am still being charged a supply charge and a delivery charge when I, in fact, am supplying and delivering Con Ed electric service for my grid, my solar panels.

They have chosen to wipe out my

charges or my kilowatt benefit. I reached out to Con Ed. They advised me, oh, it's a full procedure. You don't know about this? I said, I never agreed to have my kilowatt hours wiped out by you arbitrarily on whatever day you pick and take those kilowatt hours and then give me some small credit against future billing.

This month again, no kilowatt hours billed. I build up another credit. This month, it shows 706-kilowatt hours credit, but two months earlier I had 2,259 that was wiped out. My concern -- and I'm not going to be asking for any questions; obviously that's not part of the protocol here -- is that I spoke -- I reached out to State Assemblyperson Levenberg, and I also recently just spoke to State Senator Harckham, is that I am being charged delivery charges and supply charges for electricity and gas while at the same time Con Ed is getting electricity from me every single month.

My bill -- so for the last five years on their bill alone shows they've had a credit balance every single month, yet I'm being billed supply charge and delivery charges for nonexistent

electric service.

Now, I'd love to go off the grid completely and put battery supplies on my property, but it's quite expensive just to put these solar panels on to begin with. I would love to be off the grid from Con Ed altogether. I don't believe that they're acting in good faith in reference to solar panel homeowners.

Why? Because we are supplying Con Ed essentially great amount of solar power into the system, and we're not getting the benefit back. They draw away from us. They don't give us money for supply and delivery. And we -- and I see thousands of homes now in my -- in this -- in this -- in this area alone are putting into the grid and not taking out. Thank you for your time.

A.L.J. COSTELLO: Thank you. I just want to mention something. I don't know if you've had contact with the Department of Public Service or not, but you can actually initiate a complaint process if you want to, and try and speak with people from the Office of Consumer Services if you're interested.

MR. KRANTZ: I did reach out at the State Fair last year to those very people, and I made this complaint at the State Fair.

A.L.J. COSTELLO: But I mean, after (indiscernible) --

MR. KRANTZ: I want to do it. I know there's not supposed to be (indiscernible).

A.L.J. COSTELLO: No, I know. I just wanted --

MR. KRANTZ: But I did do that at the State Fair in Syracuse, and I raised this very issue. And the statements bear it out. The statements that I have here bear it out if anyone wants to see.

They're taken from me and they're still charging for supply and delivery. And then they wipe out the kilowatt hours when they feel like it, and I'm stuck with losing those kilowatt hours because they're getting free electricity from me. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker is Joann Campanella.

MR. KRANTZ: Do you need me to spell my name for you?

A.L.J. COSTELLO: Yes.

MS. CAMPANELLA: J-O-A-N-N C-A-M-P-A-N-E-L-L-A.

A.L.J. COSTELLO: Oh, one more time, please.

MS. CAMPANELLA: C-A-M-P-A-N-E-L-L-A.

A.L.J. COSTELLO: Thank you.

MS. CAMPANELLA: You're welcome. I didn't plan to speak. I want -- I just -- I'm very concerned with this kind of rate increase. I've been going to Assemblywoman Levenberg for a couple of years complaining about the Con Ed rates. I'm happy that she's here supporting us.

I'm really urging the PSC not to -- not to grant this rate increase. You know, we're on fixed incomes, and it's a hardship as it is just to pay the bills now. I've seen my Con Ed bill double since I moved to Ossining from, like, 2,500 to more than 5,000 a year.

They -- the delivery fees maybe can offset some of this money that they're looking for because they're charging us delivery fees for $2 or $3 worth of gas. And they're collecting $35 to $50

for maybe eight months a year. They're getting 200 to 250 percent over and above for delivery fees.

I understand they have expenses. They are entitled to profit, but it's getting cost-prohibitive for the consumers. I also wanted to just, without repeating, second the statements by Senator Harckham and Assemblywoman Levenberg because it summarized a lot of my issues. So I thank the board for hearing, and I hope that you really consider what a hardship Con Ed is putting on the customers.

A.L.J. COSTELLO: Thank you for your time.

MS. CAMPANELLA: Thank you.

A.L.J. COSTELLO: Our next speaker is Ellen Zach. I apologize if I mispronounced it.

MS. ZAWACKI: You're fine. Hi. My name is Ellen Zawacki, E-L-L-E-N, Z as in zebra, A-W-A-C-K-I.

A.L.J. COSTELLO: Thank you.

MS. ZAWACKI: 20 Kruger's Avenue, Croton-on-Hudson, New York, 10521 --

A.L.J. COSTELLO: Okay. Thank you.

MS. ZAWACKI: -- is the address. So I'm going to be short and sweet here because I only found out about this a half hour ago. And I work here at the Town of Cortlandt, so I just ran across the parking lot. I had no idea what this was about until I sat down and started hearing them speak.

I worked at Indian Point during the construction of Unit 3 and never thought that power was going to be an issue like I'm hearing today. I've been working here at the Town of Cortlandt for 31 years now, and the only reason I'm here still working is because I don't feel I can afford to stop working.

Money's tight. Everything is going up in price. I lost my husband two and a half years ago. So the money that I had coming in with both of us working, you know, was cut in half. I own my own house. But it's -- it's scary, you know, with car insurance and house insurance and all the insurances going up.

Your bills are going up. Your, you know, cable, your television, your electric. Everything is going up. Food prices are going up. I

have no idea where I'm going to be if I retire here. I have no idea how I'm going to make ends meet. It's sad to hear that these big companies don't think about us little people. And they don't. They don't care about us one bit. And I hope that you guys do.

And I, you know, just pray that you make a correct decision and think about the little people. You know, the people that have nothing but what they're making. It's a small amount of money. And I thank you and have a good day.

A.L.J. COSTELLO: Thank you. Our next speaker is Tom Luzio.

MR. LUZIO: Good afternoon. Thank you very, very much for holding these four meetings for us to participate in.

COURT REPORTER: So Tom, could you just spell your name?

MR. LUZIO: L-U-Z-I-O.

COURT REPORTER: Thank you.

MR. LUZIO: For allowing all of us in Westchester to participate. So my name is Tom Luzio. I'm a trustee in the Town of Mount Kisco. I'm here to speak mostly about a group that is unlikely to

show up en masse for these events, a voice that you probably won't hear enough of.

But before I do that, and I'm referring to our seniors and those folks on fixed income. But before I do that, I do want the record to reflect that I agree with, more like a second, everything that Senator Harckham and Assemblywoman Dana Levenberg said.

Back to Mount Kisco and our seniors. Among the 11,000 residents in Mount Kisco that I represent, there are almost 2,000 seniors. 17.5 percent of my town is on Social Security. They're all -- not all. I can't say that.

Many, many, many are in fear of losing their Social Security benefits, of losing their Medicaid benefits as a result of what's happening in Washington, DC. Many, many live on fixed incomes. When they rented their places back when, it was reasonable. Those rents have gone up. On average, they've gone up about ten percent. What hasn't gone up is their Social Security. It stays exactly the same.

They're also in danger of losing their

SNAP funding. And now they're in the position of deciding, do I pay for rent or do I pay for food? Do I keep my house cool? Do I keep my house heated? Do I keep my lights on?

I am disappointed that the other members of my board in Mount Kisco have decided not to join this lawsuit, but I think it's really important to note for you all to know that every other municipality in Westchester has joined. And that demonstrates exactly how widespread this problem and this distress is among our residents. That distress is especially impacted negatively on our senior population.

I do want to make one quick note regarding the gentleman that talked about solar. And I don't know, I'm going to use the wrong terms, whether it's buyback or rebates or whatever you get from when you send solar to you -- to the grid that you store at your house.

But the board in my town has also proposed a total ban on battery storage for solar. So if we had batteries, yeah, they didn't need you as much. They stored their solar and used it to lower

their Con Ed cost. So if what that gentleman said exactly -- I don't -- I don't know -- I don't have solar, and so I'm only echoing what he said.

But if it's true, then in my town, we won't be able to have battery storage for solar. And if it's not a gain for them to install solar and lower their bills through sending that into the grid and back to you, then the only thing that they have is the expense of installing solar, 15 to $30,000.

And yeah, I understand they get a rebate, but that would be less than that. Rebates are likely to go on in New York City and federally until 2032. But what's the point if what that gentleman said is accurate? Again, I'm not vouching for its accuracy. I don't know. But if it is, then I'm very concerned about the residents in my town because those with solar or wished or want to consider solar, it won't make a difference to them.

I really want to thank you for your time and for your conscientious effort here today. Thank you.

A.L.J. COSTELLO: Thank you for your time. Okay. We have come to the end of the people

that signed up. If there is anyone else at this point who want to come up and make a comment. You just have to sign up, and we'll give you the opportunity to do so.

UNIDENTIFIED SPEAKER: Where do you sign up?

A.L.J. COSTELLO: All right. So we can go off the record a second.

(Off the record)

(On the record)

A.L.J. COSTELLO: Thomas Conkling. Good afternoon.

MR. CONKLING: Thomas Conkling, C-O-N-K-L-I-N-G.

A.L.J. COSTELLO: Thank you.

MR. CONKLING: I basically just wanted to say that I was opposed to any increase to the Con Ed rates at this time because I feel that they certainly haven't proven their fiduciary responsibility previously they've had, which has been many in the past.

And just as an example, I would like to relate the events of May 6th of this year where

168 Con Edison ratepayers, homeowners at Mystic Point, had a five-hour outage that never should have occurred. The community which has underground utilities is fed by a double-ended switch which has two feeders. So in the event that one feeder goes down, it switches over to the other feeder and provides the power continuously.

There was no other outage in the area except at Mystic Point. And this has happened two other times in the past since I've been here. I've been here about 20 years now. The switch, it has two features. Occasionally, little critters, chipmunks, squirrels, snakes, get in this switch and they get fried and it blows the fuse, and then it switches over to the second feeder.

If nobody ever goes and checks that switch and replaces that fuse that blew, when it has to switch back the next time, it sees nothing; it's dead. We have a blackout. It was my impression that in the previous rate filing, we gave Con Ed money to upgrade everybody's meter to a smart meter, which would alert them to any issues, power failures at a certain home.

Well, apparently when my wife called at 4:45 in the morning, she got the alert center there and reported the outage. She said she didn't know there was an outage. I don't know who's monitoring the network apps or whatever, but it wasn't the person on the phone.

So she dispatched a residential repair crew, thinking it was one homeowner that was out, not 168. By the time they got there, several hours later, they realized they couldn't do anything because they weren't equipped to deal with the high voltage equipment that this switch has in it. So they called in the big boys with the high voltage equipment, the high-tension poles, and big fuses.

And they closed up their ticket because they were done, and it appeared -- my wife actually got a message from Con Edison that the power outage had been cleared when we were still sitting in the dark. I had to go to the coffee shop to go get us coffee.

About an hour later, the -- the big boys, as I call them, in the big trucks with the power poles came and replaced both fuses, and the

power came back on about five hours after it initially went out. I don't understand why that type of switch isn't monitored so that when something does happen to one of the feeders, somebody doesn't go out and repair the fuse so that it does what it's supposed to do.

In my mind, that's a failure on Con Edison's part to maintain their system, and that's why they should not get an increase on delivery. Thank you.

A.L.J. COSTELLO: Thank you. And I apologize if I mispronounce your name. Jonathan Parente.

MR. PARENTE: Jonathan Parente, close. P-A-R-E-N-T-E. And I represent Capstone Properties. It's about 630 apartment doors here in Peekskill.

And the only thing I want to bring to the Board's attention is if our other vendors operated in this same manner of 11, 13, 14 percent increase year over year, homes would be unattainable, unaffordable. We already have residents reaching out, asking for assistance, asking for help with utility bills, and it's just unsustainable, all

ready.

We have a list of assistance programs we can reference people to, but what it comes down to is just the cost year over year, people can't afford it. And I'm representing about 1,000 people here in this area alone. So if every single one of the companies that help us and assist us and make sure that our properties run properly and have everything they need, did the same thing just came to us and say, listen, we're proposing 11 percent year over year, or 13 percent, once again, people wouldn't be able to afford their homes.

And they are already reaching out for assistance. So I just don't see how this is a feasible plan for sustainability, it's like just letting them come through and say, hey, this is our proposal. This is what we would like to do, knowing that wages are two or three percent year over year.

Besides that, also inflation is below three percent. So it's a hard pill to swallow if the energy provider which is supposed to be a public utility to help people be comfortable and have what they need in their homes and local businesses come to

us and say there's a 11-percent increase this year. Who knows what it will be next year.

So I would just like to say, as far as the stability standpoint goes and people being able to afford their homes and day-to-day living, I just don't see how it's a feasible plan to pass this option. That's all. Thank you.

A.L.J. COSTELLO: Thank you.

Erika Pierce.

MS. PIERCE: Good afternoon and welcome to Westchester County. Thank you for being down here, especially as it's storming out there. I don't know if you can hear the thunder. It's quite pouring as I came in.

I am Legislator Erika Pierce. I'm one of Westchester County's 17 legislators. And I represent the second legislative district, which is the biggest fiscal district in the County where part of my district has Con Ed for its utility, and the other portion has NYSEG. The portion that has NYSEG does get its gas in most cases, though, from Con Ed. So we are a real patchwork quilt.

THE REPORTER: Ms. Erika, could you

please spell your name for the record?

MS. PIERCE: Sure. Erika, E-R-I-K-A. Last name, Pierce, P-I-E-R-C-E.

THE REPORTER: Thank you.

MS. PIERCE: So the Westchester County Board of Legislators are intervenors in this case. So for today, for my comments, I want to talk about the people, the people who call my office, the people whose experiences I'm hearing about on a daily basis as opposed to the more technical questions and issues they may be having.

And so I, like everyone here today, is here to share that the existing Con Ed rates are already too high, even as we're set to talk about potentially raising them again. Residents in the district frequently send me their bills, and the degree to which they've increased in the last few years is alarming to them. And even for me looking at these bills, it is, in fact, alarming.

Most every bill now that crosses my desk has a delivery component which is larger than the supply component. That is a serious change of the way these bills have historically been

structured. And some of those bills have a delivery component that can be higher than by a factor of three. Again, almost inconceivable.

I receive bill copies from residents who were away for the entire winter season and still had bills that were over $1,000 a month. And while I don't have my personal electricity through Con Ed, I do have gas. And while my usage, because my kids have left the house it's just my husband and I, has gone down, my bills, of course, have steadily gone up.

Con Ed's bills have gone sky high because of the series of increases, including the most recent round beginning in 2023. On January 31st, Con Ed filed, as we all know, another two billion request to increase rates, which is why we're here again today.

If approved, the proposal would increase electric bills by an average of 11.4 percent and gas sales by 13.3 percent starting in 2026, which amounts to a 25.1 percent increase on these crazy delivery bills. As I mentioned, I have more than one utility in my district, and so I know how unique this

particular set of facts is for Con Ed customers.

One of my colleagues has been saying that it's just wrong for any residents in Westchester to have to choose between food and medicine and heat, or today we should say air conditioning, which is now, given climate change, a nonnegotiable, especially for our elderly residents.

But that statement isn't even accurate. With so much front loaded now into the delivery charge for our Con Ed neighbors, these residents don't even have the opportunity to sufficiently mitigate those costs by turning down your heat or remembering to turn off their lights. Their bills are high even when their houses are completely empty for months.

So I ask you, if ratepayers cannot pay their bills today and further cannot reduce them sufficiently by turning down their usage, how are they supposed to float yet another increase?

And let me remind you, of course, that all of these ratepayers cannot choose another utility. They are stuck with Con Ed, which means they are stuck with these rates; and they are begging

folks like me to make certain that the folks like you, the PSC, hears their pain, their anger, and really, truly their fear.

They don't want to move out of Westchester. They don't want to leave this area. But I am being told time and time again that if Con Ed and the PSC does not do something about these rates, that's exactly what they're going to be forced to do.

Now, I want to highlight a particular demographic in this group, seniors and our low-income families. They are being squeezed, I'm sure you've heard from others, like never before. Temperature rise (sic) are going up. Winters are more brutal. We have more storm outages.

I know Con Ed has to bear the brunt of the cost of those storm outages. Climate change is real. But where are these people supposed to go? How are they supposed to pay these bills? They can't even pay them now. All you have to do is look at the arrearage to know that they can't even pay them now.

So electricity is not a nice-to-have; it's a need-to-have. The current bills are out of

control. We need a better system to make certain that the amount ratepayers are being asked to shoulder in the delivery portion of their bill is accurate and appropriate for them to be charged for.

We need the PSC to help restructure the system so that utilities are being treated like the public service entities that they are. Westchester ratepayers should not be feeling nostalgic for the days when they could make lifestyle changes that would somehow meaningfully lower their utility bills.

When I was a kid, what happened? Put on an extra sweater. Put on some extra pairs of socks. Oh, boy, those days are long gone. Nobody has to make those changes and have their bill get better anymore. Not only does this bode poorly for residents, but it also bodes poorly for our state's energy use goals because when there is no longer a reason for people to turn down the thermostat, we're all left in a bad situation.

So on behalf of my district, 57,000 constituents and the Con Ed ratepayers who are part of either their electric or gas usage, I beg and

thank you in advance for your help. Thank you again.

A.L.J. COSTELLO: Thank you for your comments.

Okay. We've reached the end of the list of people we have speaking. So I just want to remind you that if you want to make comments and you didn't want to speak here today, there are various methods that you do that.

You can submit them by internet at -- the internet at www.dps.ny.gov. You also email them to the Honorable Michelle L. Phillips, Secretary of the Public Service Commission at Three Empire State Plaza, Albany, New York, 12223. And you can also leave statements over a telephone line. We have a toll free opinion line at 1-800-235-2120.

We are also going to be having additional public statement hearings. We'll have another one starting at 6 p.m. this evening in this location. And then there are various other ones going on. So tomorrow, there'll be one at 1 and 6 p.m. at Brooklyn Borough Hall. There will be one at 1 and 6 p.m. at the Westchester County Center. There'll be one on Thursday at the C.W. Mixon Center

in Queens Village, New York. There'll be one at 1 and 6 p.m. in the Bronx at the Residence Inn Marriott. And then finally, there'll be -- later on this month, there'll be two statement hearings being held at 6 p.m. on July 22nd and July 23rd at the JCC in Staten Island.

So with that, I'd like to thank everyone who made comments here today and everyone who's participated for being here to hear the comments. And Commissioners, staff, police, and town for hosting us. And we can go off the record. The hearing's concluded.

(The hearing concluded)

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STATE OF NEW YORK

I, JOHN SHEFFIELD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 47, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 14th day of July, 2025.

JOHN SHEFFIELD, Reporter